

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MONIKA MASTALEREK,

Petitioner

VS.

DANIEL LOBERT,

Respondent

) Case Number: FDI-23-798868

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

OTHER REVIEW HEARING; OTHER REVIEW HEARING; REQUEST FOR ORDER: CHILD
SUPPORT, PROPERTY CONTROL, PAYMENT OF RENT AND HOUSEHOLD EXPENSES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) On 12/4/25, the Court modified the prior 7/15/25 support order and ordered Father to pay Mother \$2,036 per month in temporary monthly spousal support and \$1,314 in guideline monthly child support. The Court also ordered Father to continue to share equally the monthly rent obligation so long as both parties continue to reside in the residence, issued orders regarding child support add-on expenses, and maintained its prior work search order for Mother. See Findings and Order After Hearing (FOAH) filed 12/24/25.
- 2) On 2/4/26, the Court issued a Restraining Order After Hearing (ROAH) that expires 2/4/29 wherein Mother is the protected party, and Father is the restrained party. Father was ordered to move out of the residence.
- 3) On 4/26/26, the Court ordered Father to have unsupervised parenting time with the minor child every other week on Saturdays and Sundays from 10 am to 6 pm plus Thursday and Friday

1 evenings from pick-up after school to 8 pm on opposite weeks. See FOAH filed 5/5/26. A review
2 hearing on child custody and visitation was set for 7/23/26.

- 3 4) On 4/24/26, the Court denied Mother's request for emergency relief pending hearing set on
4 6/23/26. Mother sought orders requiring Father to: (a) pay his portion of the rent directly to the
5 landlord (and/or not deduct it from Mother's support payment unless the rent has been paid); (b)
6 continue paying support as ordered; (c) continue contributing to Mother's household expenses;
7 and (d) register and use Our Family Wizard (OFW) for communications regarding the minor
8 child.
- 9 5) On 6/12/26, Mother filed a Supplemental Declaration asserting that Father resumed paying his
10 share of her rent after being served with the ex parte Request for Order. Mother states that the
11 financial issues were temporarily resolved, but the communication issue remains ongoing. Mother
12 reiterates her request to use OFW for communications regarding the minor child.
- 13 6) On 6/17/26, Father filed a Supplemental Declaration refuting Mother's position. Father reasserts
14 that the Court should deny Mother's request for OFW. Father states the restraining order includes
15 a provision for brief, peaceful communication about the court-ordered visits only.
- 16 7) On 6/23/26, the Court continued the hearing to 7/21/26. Thereafter, the Court continued the
17 7/21/26 hearing to 7/23/26 on the Court's own motion.
- 18 8) On 7/13/26, Mother filed a supplemental declaration and updated Income and Expense
19 Declaration.
- 20 9) Father now requests a continuance due to his medical condition and submitted a doctor's letter
21 stating that he is available for a hearing in August. Mother objects to the continuance, in part,
22 because of her request to travel to Poland prior to the start of the school year.
- 23 10) The Court notes that neither party has filed the required Statement of Support Calculations
24 mandated by Local Rule 11.7 A.2b, and the Court is uncertain whether the Income & Expense
25 Declaration filed by Father on 4/7/26 is current.
- 26 11) The Court also notes that the request to travel was not raised in the original Request for Order,
27 but Father has had notice of the request and made no objection.

28 **B. Findings and Order**

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- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) The Court grants Father's request for a continuance of both the review hearing and Mother's Request for Order filed April 24, 2026, for good cause shown **to 8/27/26 at 9 AM in Dept. 403.**
- 3) The Court grants Mother's request to travel to Poland with Matthew Lobert (DOB 11/27/18) prior to the start of the school year. Mother is ordered to provide Father with her itinerary for airplane travel and accommodations and make Matthew available for telephone contact (including Facetime©) on at least three occasions while overseas.
- 4) Each party is ordered to file and serve current Income & Expense Declarations and Statements of Support Calculations with a proposed XSpouse printout as required by the SF Local Rules no later than 5 Court days prior to the next hearing. The parties are further ordered to exchange all documents required by Local Court Rule 11.7 A.2d. no later than 5 court days prior to the next hearing.
- 5) All outstanding issues, including spousal support and child support, are reserved until the next hearing date.
- 6) The Court will prepare the Findings and Order After Hearing.